

DISTRICT COURTS COMPLEX, GANGTOK, SIKKIM.

FILING – JUDICIAL SERVICE CENTER

FORM B

Details of Submission of Complaint / Case (Civil)

S.N.	Particulars	Report
1	Name of the Court.	Family Judge
2	Title of the Case.	Divorce
3	Name of the Plaintiff/s / Petitioner / Appellant / Decree holder.	Tanuka Thapa
4	Father's name/husband's name, age, address/E-mail i.d./mobile phone number.	Mr. Dhan Raj Sundar Mob. 7076450733
5	Name of the Defendant/s / Respondent / Opposite party/J.D.	Dhan Raj Sundar
6	Father's name / Husband's name, Age, Address/E-mail i.d / Mobile phone number.	S/o Lt. Bhim Sundar
7	Whether the Plaintiff/s or Defendant/s is minor or of unsound mind a statement to that effect.	-
8	Minor / person of unsound mind represented by:	-
9	Date of cause of action.	-
10	Period of Limitation. If not within limitation whether Condonation filed.	-
11	Whether Caveat petition filed / pending.	-
12	Territorial Jurisdiction.	Gangtok
13	Pecuniary Jurisdiction.	-
14	Court Fees(Bank receipt/Challan)	-
15	Court fees exemption-Legal Aid Order/ Order of appointment of Legal Aid Counsel.	-
16	Vakalatnama with proper names of the parties /E-mail I.D., mobile phone number and enrollment number of Advocate with seal.	Enclased
17	Plaint /Execution petition in with 01 duplicate copy for Court and copy each for other defendants/Opposite party/J.D along-with documents relied on by the plaintiff/petitioner/D.H.	-
18	Affidavit for Complaint, Verification clause and schedule of property.	-
19	Format for submission of complaint/petition:- i. Font size : Unicode size 12 ii. Paper size: A4 iii. Margins :Top 2 inches, Bottom 2 inches, Left 1 inch & Right 1 inch. iv. Line Space: 1.5 spacing. v. Pages to be properly numbered punched and tagged. (Do not Staple)	-
20	Preference of Mode of service of Summon / Notice i. Process server ii. Speed Post iii. Electronic mail iv. SMS v. "Dasti"	-
21	Defect curing / refilling to be done within 15 days.	-
22	Acknowledgement Slip / Filing number.	-
23	Filing time 10.00 A.M to 1:00 P.M.	-

Authorized Signatory

** Cases found incomplete as per the above format after verification, will be summarily rejected.

(Check case status online www.ecourts.gov.in/services & <http://highcourtofsikkim.nic.in/drupal/dcourt/home>)



3

**IN THE COURT OF THE LEARNED FAMILY JUDGE, SIKKIM AT
GANGTOK**

Family Court Case No. _____ of 2026

In the matter of:

Mrs. Januka Thapa
W/o Dhan Raj Sundas,
Aged about 38 years,
R/o Ranka Malangthang
Under P.O. & P.S. Ranka
District Gangtok, Sikkim
Mob. No. - 7076450733

..... **Petitioner**

Versus

Mr. Dhan Raj Sundas
S/o Lt. Bhim Sundas,
Aged about 39 years,
Resident of DPH Colony, Nandok
Under P.O. & P.S. Ranipool,
District Gangtok, Sikkim

.... **Respondent/Opposite Party**

**PETITION FOR DIVORCE UNDER SECTION 13(1)(ib) OF THE
HINDU MARRIAGE ACT**

**The humble petition on
behalf of the above named
Petitioner most
respectfully SHEWETH:**

1. That the Petitioner was married to the Opposite Party on 07/03/2008 according to Hindu Rites and lived as husband and wife at DPH Colony,

Jalipool, District Gangtok, Sikkim. That out of their wedlock they have a daughter named Razina Sundas who is now 17 years old. A copy birth certificate is marked as **Annexure no.1** and also a copy of affidavit is annexed to prove Dhan Raj Sundas and Binod Sundas are same person and the same is marked as **Annexure no.2**.

2. That the marriage between the Petitioner and the Respondent did not go well, just few months of the marriage the marital relationship started deteriorating due to views, way of thinking and taste.
3. The Respondent had the habit of taking drugs and because of such addiction he used to fight with the Petitioner quite often, and also used to sell home appliances steal money and used to physically assault the Petitioner and their daughter .
4. That because of no reason the Respondent moved out from the matrimonial' s house and abandon the Petitioner and their daughter.
5. That the Petitioner tried to contact the Respondent but all in vain after few months the Petitioner came to know that he got married to other woman and staying with her.
6. That the relationship of the Petitioner and the Respondent became strained and the both the parties having serious differences. As a culmination of the differences the Respondent moved out from the Matrimonial house on September 2015, since then been living separately. A copy of NOC issued bearing Memo: 252/18NDS GPU dated 20/06/24 by Village



5

Administrative Centre of Nandok Saramsa Gram Panchayat, Unit no.18
Gangtok, Sikkim is filed herewith and marked as **Annexure no.3**.

7. That there is no other legal ground as to why relief should not be granted.
8. That there has not been any other previous proceeding between the parties.
9. That the Respondent has deserted the Petitioner for a continuous period of more than eleven years.
10. That this petition is made bonafide and in the interest of justice.

Under the facts and circumstances given hereinabove and in the interest of justice the Petitioner most fervently prays that this Hon'ble Court may be pleased to:-

- (i) Pass a decree of divorce on the ground of desertion.
- (ii) Pass such other or further orders as this Hon'ble Court deems fit and proper.

And for which act of kindness the Petitioner as in duty bound shall ever pray.

Place: Gangtok

Date: 06/05/2026

Filed By:


Petitioner

6

VERIFICATION

Verified on this the^{6th} day of May, 2026 at Gangtok declaring that the statements made herein the above paragraphs are true to the best of my knowledge and belief and no materials has been concealed or suppressed therein.

And I have filed this petition on this the^{6th} day of May, 2026.

Place: Gangtok

Date: 6/05/2026

Petitioner



Januka Thapa



7

IN THE COURT OF THE LEARNED FAMILY JUDGE, SIKKIM AT
GANGTOK

Family Court Case No. _____ of 2026

In the matter:

Mrs. Januka Thapa

... Petitioner

Versus

Mr. Dhanraj Sundas

... Opposite Party

AFFIDAVIT

I, Mrs. Januka Thapa, S/o Bhim Sundas, aged 38 years, resident of Ranka, Malangthang, District Gangtok, Sikkim do hereby solemnly affirm and state as follows:-

1. That I am the Petitioner in the instant case and am well conversant with the facts and circumstances of the case.
2. That the contents of paragraphs 1 to 9 are true to the best of my knowledge and rests are my respectful submission before this Hon'ble Court.


Deponent

VERIFICATION

I, **Januka Thapa**, do hereby verify that the contents of my above affidavit are true and correct, that no part of it is false and nothing materials has been concealed there from. I signed this verification at Gangtok, Sikkim on this the 4th day of May, 2026.

Identified by:

solemnly affirmed before me on this the 4th
day of May 2026 by Shri/Smt/Miss Januka
Thapa of Ranka Malangthang who
is known & identified by Shri/Smt/Miss Adv
Jyoti Pradhan OI Gangtok


Deponent


Ms. Songmith Leezum Lepcha
Oath Commissioner
Gangtok District
High Court of Sikkim
Date Notified on: 13/05/2026